

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 11, 2019

The Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Shanor who abstained.

[CA] Minutes from Special Meeting of the Governing Body on February 22, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Regular Meeting of the Governing Body on February 25, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 27, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 28, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

Mayor Orr opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for or all of Lots 6 and 7, Block 1, and all that 16' alley located in Block 1, Countryside Addition, Laramie County, Wyoming (located southwest of the intersection of Countryside Avenue and Whitney Road). Seth Lloyd, Planning and Development Department, advised the annexation request was submitted by the landowner, provided information on the property and reviewed requirements of and compliance with annexation conditions contained in state statutes and advised this is the second public hearing due to the project being postponed. Mr. Lloyd advised agenda item #14 is the affiliated annexation ordinance. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

Mayor Orr opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for all of FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive). Seth Lloyd, Planning and Development Department, advised the annexation request was submitted by the landowner, provided information on the property and reviewed requirements of and compliance with annexation conditions contained in state statutes advised the annexation request was submitted by the landowner, and advised agenda item #17 is the affiliated annexation ordinance. Dr. Kay Sheehan, adjacent property owner, advised she received a letter regarding the proposed annexation, stating meeting information was not included and voiced concerns relating to required development signage. Dr. Sheehan read a letter into the record advising it is her understanding county staff was unaware of the proposed annexation and provided information on how the annexation would affect her land and adjacent property owners. She expressed concerns regarding: City improvements that would have to be reimbursed if her property is sold, potential for increased traffic and crime if additional businesses were to open in the area and requested consideration to postpone or deny the proposed annexation. Glen Connor spoke in opposition of the proposed annexation and voiced concerns relating to development improvements and required reimbursements and noted previous estimate amount for improvements. Mr. Connor requested confirmation in writing that he and other area property owners wouldn't be responsible for reimbursement of developer fees. Mayor Orr advised reimbursement requirements will be researched. Upon inquiry, Mr. Lloyd advised the Planning Department followed state statute notification requirements for annexation petitions reporting notification was sent to nearby property owners within 300 ft. It was noted UDC development signage requirements were followed, but weather conditions may have contributed to signs blowing down. Developers must make a good faith effort to ensure the notices remain posted. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3RD READING – Annexing to the City of Cheyenne, Wyoming, Lot 4, Block 2, Swan Ranch Rail Park Third Filing, and a portion of Tundra Drive, Laramie County, Wyoming (located at the southwest corner of Tundra Drive and Clear Creek Parkway). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4261)

ORDINANCE – 3RD READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County Swan Ranch PUD Planned Unit Development to City Swan Ranch PUD Planned Unit Development (Ordinance No. 3989) for Lot 4, Block 2, Swan Ranch Rail Park Third Filing, Laramie County, Wyoming (located at the southwest corner of Tundra Drive and Clear Creek Parkway). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body. (#4262)

ORDINANCE – 3RD READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light

Industrial for Hutchins Corner 2nd Filing Lots 4 & 5, Laramie County, Wyoming (located south of and adjacent to Campstool Road, west of Hutchins Drive). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4263)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, all of Lots 6 and 7, Block 1, and all that 16’ alley located in Block 1, Countryside Addition, Laramie, County, Wyoming, (located southwest of the intersection of Countryside Avenue and Whitney Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning District Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County AR Agricultural Residential to CB Community Business for all of Lots 1, 2, 5, 6, 7, and 8, Block 1 and all of Lots 2, 3, and 4, Block 2, Countryside Addition, Laramie County Wyoming, (located south of Countryside Avenue, west of Whitney Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, all of FW Subdivision, Laramie County, Wyoming (Located northeast of the intersection of College Drive and Southwest Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning District Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County CB Community Business to CB Community Business for all of FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning District Established, and Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, amending the zoning classification for a portion of the southeast quarter of Section 11 and the northeast quarter of Section 14 in Township 13 North, Range 67 West from the Overland Trails Planned Unit Development (PUD) to the CFD Park-N-Ride PUD for the 27.69-acre Lot 1 of the CFD Park-N-Ride Subdivision in the City of Cheyenne, Laramie County, Wyoming (located west of Southwest Drive, north of College Drive, and adjacent to I-25) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending Chapters 5.48, Detective, Patrol and Guard Service Businesses, 5.52, Massage Establishments, and 5.72, Public Transportation, within Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Directing the availability of the production of Tchaikovsky’s The Nutcracker Ballet at the Cheyenne Civic Center (Postponed from February 25, 2019). Dr. Rinne

and Mr. Esquibel declared conflicts of interest and vacated council chambers. Stephanie Meisner-Maggard, Ballet Wyoming, Board of Directors, expressed support for the resolution and articulated this will allow the ballet to conduct the production with local organizations. She explained she distributed survey information obtained from a Forward Greater Cheyenne initiative she spoke about at the last council meeting. Barbara Sandick, Executive Director of Ballet Wyoming, advised there are many professional dancers locally and provided information on professional training companies that local dancers have attended. She explained the concept of a “routed tour” which involves many performances along a route in a certain timeframe and provided information relating to a radius clause. Upon inquiry, Ms. Sandick advised Ballet Wyoming has funding sources necessary to conduct The Nutcracker production every other year. Julie and Gracie Fogg provided information about Ballet Wyoming and local dancers and spoke in favor of the resolution. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Case. Mr. Shanor moved to amend by adding at the end of the “Be it further resolved” clause: “This resolution sunsets January 1, 2023”, seconded by Mr. Luna. Comment was made relating to community spirit and the governing body taking an arbitrary approach. Ms. Sandick spoke in support of the amendment. Motion to amend carried. Voting “yes” – all members of the governing body present in council chambers. Jason Sanchez, Deputy Director of Community Recreation and Events, explained upon inquiry, contact was made with Moscow Ballet. It was noted there are many professional traveling production companies. Main motion as amended carried. Voting “yes” – all members of the governing body present in council chambers. Following announcement of the vote, Mr. Esquibel and Dr. Rinne returned to council chambers. (#5979)

RESOLUTION – Directing all revenue from Contract No. 5902 to be earmarked to plan, build and maintain recreation facilities at the Belvoir Ranch. Todd Thibodeou, Belvoir Master Plan planning committee, explained wind generation will have a significant impact to the property. Mr. Thibodeou voiced support for wind energy revenue going towards recreational improvements. Speaking in support of recreational development on the property were: Barb Gorges, Cheyenne High-Plains Audubon Society, Peter Skram, Wyoming Pathways, Cheyenne Mountain Bike Club and Overland Mountain Bike Association, Jean Shiverdecker, Granite Canon, Caroline Esch, Cheyenne Mountain Bike Club and highschool Mountain Bike Team coach and Jodee Pring, highschool Mountain Bike Team coach. Topics discussed included: Opposition of utilizing so much of the land for wind turbines, maintaining recreational value of property and mountain biking trails, racing and riding opportunities on the property. Brad Brooks, Director of BOPU, spoke about water studies on the property, City and Board contributions for purchasing costs, and noted any BOPU revenue from the wind energy project will go towards water development expansion. Mr. Brooks explained funding options relating to water development projects, stating the Board will apply for state loan if they don’t receive enough project revenue and explained sewer loan limitations. Vicki Nemecek, Director of Public Works, referenced a memo distributed previously regarding Finance Committee comments stating the solid waste fund could utilize additional revenue to supplement maintenance on the ranch. Ms. Nemecek provided landfill design costs and explained development was halted due to cost estimates of the project. Comments were made regarding possible future uses for the Belvoir Ranch and ranch management during windfarm development. Mr. Roybal advised a financial plan must be submitted for the project and there is a 10-year sunset date on the resolution. Teresa Moore, Community Recreation and Events Director; advised public access contributed to delayed recreational development on the property. She

discussed maintenance and affiliated costs for the property. Mr. White moved to adopt, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated March 8, 2019, seconded by Mr. Roybal. Ms. Nemecek confirmed wind farm revenue amounts and provided cost information associated with the landfill expansion. Comment was made regarding concern for not fully utilizing the land for recreational use and how long maintenance will be needed for the wind turbines. Mayor Orr explained turbines are eventually removed. Upon inquiry, Ms. Nemecek explained the need for cattle grazing on the property and how cattle are fenced in areas throughout the grazing period. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne and Mr. Luna voting “no”. Comments were made on the postponement. Alessandra McCoy Fakelman, Assistant City Attorney, explained proposed revenue distribution amounts are undetermined and suggested addressing the matter in the annual city budget ordinance. It was noted the master plan for the Belvoir Ranch is available for review. Comment was made related to wind farm revenue utilization for recreation in other areas of the city. Mr. Case moved to postpone to March 25, 2019, seconded by Mr. Luna. Motion to postpone carried. Voting “yes” all members of the governing body with the exception of Mr. White voting “no”.

[CA] RESOLUTION – Authorizing the hiring of three (3) additional uniformed officers for the Cheyenne Police Department. Motion (per Consent Agenda) carried. (#5980)

[CA] RESOLUTION – Authorizing the submittal of a request to the Wyoming State Loan and Investment Board to amend Drinking Water State Revolving Fund #133 from \$3.0 million to \$4.9 million for the City of Cheyenne Hydroelectric Generation Facility Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to sign all loan documents. Motion (per Consent Agenda) carried. (#5981)

RESOLUTION – Calling for a drainage study to be conducted for and around the Thomas Heights Development. Speaking in support of the resolution were: Rod Stone, Larry Bechtoldt and Bill Spillman. Topic discussed included: Concern with flooding related to the development of Thomas Heights, current stormwater drainage language in the UDC, significant flooding events in the area causing considerable damage, water drainage in Sunrise Heights and money spent by property owners on water mitigation. Mr. White moved to adopt, seconded by Mr. Laybourn. Discussion topics included: mitigating flooding issues, subdivision development contributing to flooding neighboring areas, benefit of hiring a 3rd party consultant for a drainage review, storm water utility charges, funding mechanism to pay for a drainage study, preventative measures for future developments, stormwater drainage maps and 2009 groundwater drainage plans. Mr. Case moved to amend by adding a new line 1 to read: “Direct the City Engineer to develop a detailed scope for the project, and to put the project out to bid pursuant to the procedures set forth in Part III of the City of Cheyenne’s Purchasing Policy and Procedures Manual, Professional Services – Architects, Engineers and Surveyors”, renumber section 1 to 2, strike the words “an honest” and replace with “a thorough” in section 2, renumber section 2 to 3 and insert “this Governing Body” after the word “residents” in section 3, seconded by Mr. Laybourn. Amy Allen, City Engineer, suggested a SOQ (consultant services – Statement of Qualifications) or bid process for the study. Mr. Stone advised he has attempted to resolve the issue with Guardian Homebuilders. Donn Edmunds spoke about a floodwater situation he had been involved with in a different area of the

city. Ms. Allen and Sylvia Hack, City Attorney provided further information on the SOQ, RFP and bid processes. Motion to amend failed. Voting “no” - all members of the governing body. Discussion continued and included: Resolution language, city and county involvement, establishing responsibility for resolution of the drainage issue, funding source for potential drainage evaluation by a third-party and concern with prior analysis’. Upon inquiry, Ms. Allen explained drainage pond requirements in the area, drainage engineer review of original plans and the need for review of City code regarding flooding. Chris Lovas, AVI Engineering, P.C., provided information on their analysis and the 3-pond plan for the area stating the plan included expansion of an existing drainage pond and infrastructure installment in the Granite Hills Subdivision. Further discussion continued on information contained in a report from Benchmark Engineers. Motion failed. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Roybal and Mr. White. Voting “no” - Mr. Case, Mr. Luna, Mayor Orr, Dr. Rinne and Mr. Shanor.

[CA] RESOLUTION – Naming the Cheyenne Botanic Gardens Grand Conservatory the Shane Smith Grand Conservatory – referred to Public Services Committee. (Sponsors – Mr. Case, Mr. Cook, Mr. Laybourn and Mr. White.

[CA] RESOLUTION – Providing for the budgeting of excess 1% Specific Purpose Sales and Use Taxes collected for the August 21, 2012 voter-approved specific purposes – referred to Finance Committee. (Sponsors – Mr. Luna and Mr. Shanor)

[CA] Preliminary Plat for US 30 Business Plaza, Second Filing, a replat of Lots 1, 2, 3, 5, 6, 7, and 8, Block 1 and all of Lots 2, 3, and 4, Block 2, and all of Tim Tam Street, and all of that 16’ alley located in Block 1, Countryside Addition, together with Lots 7, 8, and 9, Block 1, US 30 Business Plaza, Cheyenne, Laramie County Wyoming, (located south of and adjacent to Countryside Avenue, west of Whitney Road) – referred to Public Services Committee.

[CA] Preliminary PUD for Harmony Valley, a portion of the S½ of Section 7 and the SE¼NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located north of and adjacent to W. College Drive, west of Walterscheid Boulevard) – referred to Public Services Committee.

Professional Services Agreement between the City of Cheyenne and AVI, P.C. for engineering design and construction management services for the Allison Road and Cribbon Avenue Street Improvements Project (2015-2018 1% Sales Tax). Wesley Bay, Deputy City Engineer, provided a staff report for the project. School Resource Officer Becky Juschka, Johnson Junior High, reported traffic is a concern in the area of the school due multiple factors including – confusing traffic pattern, busses causing lack of visibility and crosswalk placement. Coley Maurer, spoke in support of the proposed improvement project and stated her daughter was recently injured by a vehicle in the intersection. Jeff Dierksen spoke in support of the agreement. Mr. White moved to approve in an amount not to exceed \$69,500.00, seconded by Mr. Shanor. Upon inquiry, Anissa Gerard, Traffic Engineer, explained in her experience the practice has been to not to reduce the speed limit in junior and senior high school zones. She believes a plan to revise the traffic flow in the intersection will naturally reduce speeds and advised temporary measures will be implemented until construction starts on June 4th. Ms. Gerard advised signs will be installed with median and

flashing lights. Comments were made regarding the importance of crosswalks and crosswalk safety. Ms. Gerard explained she meets with the school district monthly to discuss safety. Motion carried. Voting “yes” – all members of the governing body. (#6963)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff’s Department and Laramie County for housing City Prisoners at the Laramie County Detention Center – referred to Finance Committee.

[CA] Amendment to Contract #6905 between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2018-2019 school year and summer school 2019 – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Country Club for continued use of the premises located on Stinner Road for a period of 100 years – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6951 between the City of Cheyenne and Ramaker & Associates, Inc. for data conversion and software maintenance for the City’s Cemetery records (Information Technology Division Maintenance Funds). Motion (per Consent Agenda) carried (in the amount of \$5,600.00). (#6951)

[CA] Amendment No. 4 to Contract No. 3911 between the City of Cheyenne and Bresnan Communications, LLC, l/k/a/ Charter Communications to extend the term of the contract until May 31, 2019. Motion (per Consent Agenda) carried. (#3911)

[CA] Contract Modification #1 to Contract #6660 between the City of Cheyenne and WYCO Recycling LLC for recycling services to increase the tipping fee for recyclables, monthly minimum payment, and annual not-to-exceed cost (Solid Waste fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6785 between the City of Cheyenne and HDR Engineering Inc. for additional construction management services for the Christensen Road Overpass Project (6th Penny Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-13-19 for the Surplus Sale of “United Rotary Brush, United Pro Strip Brooms”, for the Street & Alley Division (Revenue to City). Motion (per Consent Agenda) carried (revenue to the City in the amount of \$510.00).

[CA] Consideration of Bid #E-14-19 for furnishing one new ¾ ton crew cab full size pick-up truck (command vehicle), one new extended cab mid-sized pick-up truck (support truck), and two new four-door utility Police Interceptors (staff vehicles) for the Cheyenne Fire & Rescue Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-10-19 for a contract between the City of Cheyenne and Kaiser Corporation d/b/a Kaiser Flooring, Cheyenne, Wyoming for the Municipal Building 2nd Floor Carpet Replacement Project (Capitol Improvement Plan (CIP) funding) – referred to Finance Committee.

[CA] Consideration of Bid #E-16-19 for the surplus sale of traffic controllers and traffic control cabinets for the Traffic Division (Revenue to City) – referred to Finance Committee.

[CA] Renewal applications for existing City liquor licenses and permits (retail, restaurant, limited retail, resort, bar and grill licenses and microbrewery, satellite distillery and special malt beverage permits) filed with the City Clerk's office. Motion (per Consent Agenda) carried.

Appointment of Robin L. Lockman as City Treasurer for the City of Cheyenne. Mr. Luna moved to approve, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments). Mayor Orr expressed appreciation to Ms. Lockman.

Appointment of Kimberly Skoutary-Johnson to the Laramie County Community Juvenile Services Joint Powers Board and Kevin Yarbrough to the Mayor's Council for People with Disabilities. Mr. Luna moved to approve, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Under other business:

Donn Edmunds commented on the plans for U.S. Highway 30 and Christensen Road project.

Jeff Dierksen voiced concern relating to failure of the resolution related to a drainage study in Thomas Heights and requested consideration to continue working on a possible solution. Mayor Orr advised further discussions can be held related to the concern.

Amy Allen, City Engineer, reported on information provided to members of the governing body related to the 26th Street Interceptor Project as previously requested, and advised the RFP for a consultant for the project is moving forward. Mayor Orr provided information on presentation of the project to the State Loan and Investment Board, noting the grant is awarded as reimbursement. Support was expressed for the project.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:12 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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